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Regulatory Secretariat Division
General Services Administration
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Re: Supplemental Public Comment on FAR Case 2026-002 — Revolutionary FAR Overhaul, Parts 6, 7, 10, 18, 26, 37, and 41 (91 FR 37636). This comment supplements my prior comment in this docket and concerns Part 7 (Acquisition Planning) and Part 37 (Performance-Based Acquisition).

To the FAR Council:

This comment supplements my earlier submission in this docket, in which I supported the Overhaul's discretion-based structure and recommended that acquisition planning name requirement feasibility as an outcome and that the FAR Companion carry a concrete pre-issuance feasibility check. I write here to (1) identify, for the record, the source framework underlying that recommendation, (2) note its documented federal application, and (3) state clearly what I offer to the guidance effort and what I retain. My purpose is completeness of the record, not advocacy for any proprietary interest.

1. Identification of the framework.

The pre-issuance structural check described in my prior comment — singular accountability for each decision and its consequence, feasibility validated before competition, scope prioritized against a defined baseline, claims substantiated rather than asserted, and a credible pre-award off-ramp — is drawn from the **3PQ Acquisition & Management System**, a performance-based, owner-side design-build procurement methodology I authored and first applied in 1999. The designation "3PQ" describes its structure: three owner-defined requirement domains — **P**rocedures (roles and responsibilities), **P**rogram (metrics and capacities), and **P**erformance Criteria (measurable quality) — verified through a fourth discipline, **Q**uality, exercised as substantiation: documented verification that the delivered work complies with the three requirement domains before, during, and after construction.

2. Documented federal application.

The methodology was used to structure the acquisition of the U.S. Department of Energy / National Renewable Energy Laboratory Research Support Facility (RSF) in Golden, Colorado, which I structured in 2007 with Phase I completed in 2011. DOE's own published account of that project, *The Design-Build Process for the Research Support Facility*, documents the "3PQ Acquisition and Management System" by name and describes its use in defining the performance-based, prioritized RFP (Mission Critical / Highly Desirable / If Possible). The RSF was delivered on budget and on schedule and earned LEED Platinum. The same methodology was applied across additional public-sector design-build procurements, including U.S. military and National Guard facilities.

3. Relevance to this rule.

The framework is offered as a field-proven precedent for precisely the outcomes the Overhaul seeks. It operationalizes the reform's own vocabulary — "critical thinking, market awareness, and risk literacy" — at the planning stage: the feasibility discipline maps to the planning outcomes in proposed FAR 7.102 and to the industry-engagement authority relocated to FAR 7.105; the substantiation discipline maps to

the performance-based methods consolidated at Part 37; and the singular-accountability and prioritized-scope disciplines support the competition framework of Part 6. The point for the record is simply that a structured, discretion-preserving way to achieve these outcomes already exists and has performed in federal practice.

4. Scope of contribution and reservation.

I offer the underlying **principles** of the framework freely, as a contribution to the FAR Companion guidance effort; general principles of sound procurement are not, and are not claimed by me to be, proprietary. I do, however, retain the **"3PQ" name and mark** and my associated proprietary training and documentation materials. My prior comment's statement that I make "no proprietary claim on the record here" was directed to those general principles and should not be read as a waiver of the name, the mark, or those materials.

5. Offer of material.

A crosswalk mapping the 3PQ structure to the specific authorities in this rule — Part 6 (competition), Subpart 7.2 (market research), FAR 7.105 (industry engagement), and Part 37 (performance-based methods) — is available to the Council or its staff on request, as is a fuller description of the pre-issuance feasibility check. I would welcome the opportunity to share either with the appropriate office.

Thank you for the opportunity to supplement the record.

Respectfully submitted,

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Filed as an individual. FAR Case 2026-002.